



सत्यमेव जयते

विदेश मंत्रालय



विशेषाधिकृत निर्देश

PRIVILEGED INSTRUCTIONS

**Ministry of External Affairs
REPUBLIC OF INDIA**



विदेश मंत्रालय
भारत सरकार

Ministry of External Affairs
Government of India

Privileged Instructions

Fundamental Principles:

- Jammu and Kashmir is a legal and integral part of the sovereign nation of India.
- A resolution on and within Jammu and Kashmir is necessary for regional stability and progress.

Desired End State(s):

- Cessation of Pakistani and JKLF support for terrorist groups against India.
- Recognition and acceptance that Jammu Kashmir is an internal matter of the Indian nation.
- Pakistan abandons all claims to and cedes control of Azad Kashmir to our nation.
- Agreement from the Jammu & Kashmir delegation to work within the confines of the Indian constitution and laws and to respect the duly elected Legislative Assembly of Jammu and Kashmir.
- Recognition of human rights investigations as purely domestic issues.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

PRIMARY GUIDANCE: As concerns all parties to these talks, your delegation should begin by stating the unequivocal position that all of Jammu and Kashmir is part of India; we therefore reject the involvement of the international community in this matter beyond simple facilitation of talks. These matters may only be resolved through direct negotiation between our nation and Pakistan. All other matters are internal to the Indian state, which includes Jammu and Kashmir.

Meet with Pakistan and the Jammu & Kashmir delegation separately to work towards a Jammu and Kashmir that is part of greater India. India will not be part of any meeting that involves both Pakistan and the Jammu & Kashmir delegation. When negotiating the issues of governance and related discussions on terrorism, it may be necessary to involve China. Involvement of extra-regional actors should only be used to pressure the primary regional actors to agree on a resolution to the conflict. The most desirable solution will involve only India, Pakistan, and China. Your delegation should be skeptical of both Pakistan and the Jammu & Kashmir delegation. We should push to convince the Jammu & Kashmir delegation that negotiations with Pakistan will not be productive and that India has the resources and international reputation to be a beneficial partner to the Jammu & Kashmiri people. Moreover, the possibility of reinstating Article 370 and rescinding Article 356 can be a powerful tool in convincing the Jammu & Kashmir delegation to work primarily with India.

Chapter Issues and Principal Negotiating Positions

Chapter I: Territory

Discussion:

Our government, as it always has and will always do, asserts that all of Jammu and Kashmir belongs to India, and Pakistan's primary interest is to illegitimately seize control of Jammu and Kashmir. We respect life, democracy, and the desire for people to live peacefully. As such, we now have to deal with a Jammu & Kashmiri leadership that is active politically within Pakistani-controlled Azad Kashmir and so, despite statements to the contrary, likely encourages terrorists to function within Jammu and Kashmir. For this reason, our negotiations with the Jammu & Kashmir delegation should focus on whether or not they are capable of being the sole representative of the Kashmiri people. Our government has divided the region into two administrative states – Jammu and Kashmir, and Ladakh – in response to lack of any one party to adequately represent the needs and aspirations of all Kashmiris. While this is not a firm position, it is part of a list of options. In the past the United Nations has pushed for the LoC to be accepted as the official boundary, but we will continue to assert that all of Jammu and Kashmir is part of India.

China also claims territorial interests in this region. The Sino-Indian War of 1962 resulted in a loss of territory for India. China claims that the territories of Aksai Chin and Arunachal Pradesh are Chinese. The Indian government stands firm that both territories rightfully belong to India. While this issue has not been resolved, we have observed the status quo since the 1962 war, and no major negotiations or treaties have addressed the territorial dispute. We have prevented the dispute over the two territories from impacting our economic relationship with China, and both sides are loath to enter negotiations over the territories. The international community has not been nearly as vocal about resolving the dispute between China and us as it has about our dispute with Pakistan. Considering recent provocations by China on this frontier, we must now insist that Indian sovereignty be respected by the international community here as well.

Our Position:

Our position continues to be consistent: the entire princely state of Jammu and Kashmir, which includes all territories under Indian, Pakistani, and Chinese administration, is historically and legally part of the Indian nation. The legal claim to Jammu and Kashmir goes back to the Instrument of Accession, signed by the Maharaja of Kashmir, promising Jammu and Kashmir to India. Indian officials have discussed – internally – the possibility of negotiating to the LoC, but that is a position that the Prime Minister has not decided on. India will not cede any portion of Jammu and Kashmir, whether to Pakistan, to China, or as an independent entity under the Jammu & Kashmiri leadership. Moreover, India also will not support the exchange of territory between any other parties.

Guidance:

It is unclear what the Jammu & Kashmiri leadership's exact intentions are. What is clear is that the group despite its claims to the contrary, is seeking to separate Jammu and Kashmir from India in part by using this forum to legitimize its claims that they represent all the Kashmiris of the princely state, and thus seek complete independence for the state of Jammu Kashmir. If the Jammu & Kashmiri leadership intends to unify Kashmiri territory, then it must do so within Indian sovereignty, and only if Jammu & Kashmiri leadership acts through a legitimately elected part of the Jammu and Kashmir Legislative Assembly. Our recent dividing of the territory into separate Indian provinces states, each subordinate to India, may prove to be the best solution in quelling the ambitions of the

Jammu & Kashmiri people to unify the region. This course of action does not of course end our dispute over Azad Kashmir and the Northern Areas with Pakistan; it will, however, weaken the Jammu & Kashmiri leadership's ambitions. There may be a cost to India – dividing the state has created an even more concentrated Muslim region that Pakistan may then try to incite and seize. Moreover, India must determine how the Jammu & Kashmiri leadership intends to address the issue of Aksai Chin. If the Jammu & Kashmir delegation does not pursue negotiations with China over Aksai Chin, then we should be more willing to negotiate with the Jammu & Kashmir delegation. Convincing the Jammu & Kashmir delegation that negotiating with the Chinese will complicate the issue may help India's case with the Jammu & Kashmiri leadership and establish a rapport.

Red Line:

No talks in which India would cede any part of the State of Jammu Kashmir.

Chapter II: Jammu and Kashmir Governance

Discussion:

UN Security Council Resolution 47 called for a plebiscite in Jammu and Kashmir. We, along with much of the international community, support this resolution. However, we do not approve holding such a vote due to security concerns. We know that in a secure Jammu and Kashmir, a plebiscite would show that the Kashmiri people choose to remain with a secular and prosperous India.

Our Position:

Any government in Jammu and Kashmir must be friendly toward and subordinate to India, as Jammu and Kashmir is – by law – a part of India. India does not support any independence movements, or the Jammu & Kashmiri leadership's stated goal of increased autonomy and eventual self-determination, which does not comply with India's aims for the region. India also will not support a unified Kashmiri state if that state is not within the sovereignty of India. India supports the UN mandated plebiscite when security and stability are established in the region. Currently, we are only open to reinstating Article 370 and rescinding Article 356 if the parties in Jammu and Kashmir agree to work within the confines of the Indian government and constitution.

Guidance:

Continually remind other participants in the negotiations that the Maharaja of Kashmir signed the Instrument of Accession, placing the governance of Jammu and Kashmir under Indian rule.

We must determine what the true objectives of the Jammu & Kashmiri leadership are, and if they are more closely aligned to India or Pakistan, or instead seeking nonalignment with either state. The Jammu & Kashmiri leadership has asserted increased autonomy for all of Jammu and Kashmir, but we must determine whether this is a true point of negotiation or a cover for a more ambitious plan to create the circumstances for complete independence. If the Jammu & Kashmir delegation is willing to work within the frame of an autonomous state government under India, then we can negotiate with them. Paramount to these negotiations is the disarmament of militant groups that Pakistan has tacitly allowed to thrive in the region. We must insist that the Jammu & Kashmir delegation must continue to rely on Indian security forces to guarantee security throughout the entirety of Jammu and Kashmir. The Jammu and Kashmir police are simply unable to secure the LoC, Kashmir Valley, and Srinagar, where terrorist groups had been operating almost with impunity until the recently increased levels of Indian control were established.

If the Jammu & Kashmir delegation is unconvincing in its assertions that it is not seeking independence when meeting with us, then we must pressure them to reveal their true intentions

through others or through the threat of military or economic force, or simply end negotiations with them. We can appeal to China for support in deterring a possible regional precedent in rewarding Kashmiri rebellion with independence. The use of extra-regional allies is not preferred, but if needed for leverage against the Jammu & Kashmir delegation or Pakistan, can be employed. As an example, we can leverage our commercial, political, and security relationships with the United States and Russia to push the position that Jammu and Kashmir should be part of India. Certainly, PM Modi's strong relationship with President Biden can be leveraged in India's favor. Finally, we must appeal to the international community based on India's secular principles. Kashmiris, regardless of religion, are protected by the Indian constitution – something that cannot be guaranteed in a Pakistani-ruled, autonomous, or independent Jammu and Kashmir. A regional solution involving India, Pakistan, China, and, under specific circumstances, the Jammu & Kashmir delegation, should be the priority. India should be wary of extra-regional nations trying to push their own agendas and should try to control the dialogue at every step of the way.

Red Line:

No discussion of an agreement in which Jammu and Kashmir is independent, or a part of Pakistan.

Chapter III: Human Rights and Displaced Persons

Discussion:

Our main interest is securing our sovereign territory against both conventional military attack and the infiltration of terrorist elements. In this pursuit, unavoidable and accidental civilian deaths have occasionally occurred. Yet Pakistan and various Kashmiri groups have accused us of heinous human rights violations, many of which are unfounded and grossly exaggerated. All Indian actions are conducted in accordance with Indian law, in particular, the Armed Forces Special Powers Act (AFSPA). This act, established in 1958, allows the Indian army to take necessary measures to combat terrorism and so drastically limits the number of citizen casualties.

Pakistan is the main offender regarding human rights violations in Jammu and Kashmir, especially in the Pakistani occupied area of Azad Kashmir. The Pakistani army and the Pakistani Inter-Services Intelligence (ISI) control this area and have banned political freedom and freedom of the press. At any time, any individual can be detained, harassed, and tortured without reason. Pakistan is also a hotbed of terrorist activity, much of it state-supported. The Pakistani government incites violence and instigates conflict, which further infringes on human rights and safety in the region.

The United States, United Kingdom, and the UN have a stake in conducting investigations into any human rights violations in the region. They are also concerned about the flows of IDPs and refugees throughout the region, which have contributed to the poor humanitarian situation in Jammu and Kashmir. Pakistan and the JKLF and Jammu & Kashmiri leadership have specifically criticized the Indian government and want to pursue an international human rights investigation.

Our Position:

Since Pakistan is the main driver of the ongoing crisis, the US-UK request to launch an investigation into Indian actions is unwarranted. We see IDPs in India as an internal issue and are not overly concerned by the number of IDPs. Similarly, we do not want any external investigations into nonexistent human rights violations. We are willing to amend the AFSPA in response to international pressure, but such a measure has been blocked in the past due to a lack of consensus between the government and the army.

Guidance:

We do not see human rights as a priority issue for these negotiations; however, the UN, UK, and US are pushing for an investigation. China and Russia oppose any external investigations as they do not trust the UN or the West. Given the proximity of this region to both Russia and China, they wish to maintain stability in this region, and view any resolution to the issue of human rights and displaced persons as a way to increase stability. While we reject any external investigations, in order to maintain good relations with the international community we are willing to push for a thorough domestic investigation, and we will share our findings. The partner who will most likely support our desire for an internal investigation is Russia. Russia is our longstanding ally and believes strongly that any issues should be resolved solely between Pakistan and our nation. Gaining US, UK, and Chinese support for a domestic investigation may also be possible if we can prove that we are a responsible partner, perhaps by increasing humanitarian aid or committing to infrastructure projects in Jammu and Kashmir. Inform the other negotiating parties that we are open to negotiating on reconstruction and development projects, so long as India controls the ways and means by which they are conducted, and that we can come to a peaceful overall settlement that ensures an internal investigation of human rights issues.

Red Lines:

- No external investigation.
- No development and reconstruction projects in Jammu and Kashmir that exclude the Indian government.